ORDINANCE NO. _____

**AN ORDINANCE OF THE CITY OF SAN JOSE AMENDING TITLE 20 (ZONING ORDINANCE OR ZONING CODE) OF THE SAN JOSE MUNICIPAL CODE TO AMEND THE DEFINITION OF EMERGENCY RESIDENTIAL SHELTER IN CHAPTER 20.200, AMEND THE SPECIFIC USE REGULATIONS FOR EMERGENCY RESIDENTIAL SHELTER IN CHAPTER 20.80, AND AMEND THE EMERGENCY RESIDENTIAL SHELTER USE WITHIN TABLE 20-90 OF SECTION 20.40.100 OF CHAPTER 20.40, 'COMMERCIAL ZONING DISTRICTS AND PUBLIC/QUASI-PUBLIC ZONING DISTRICTS,' TABLE 20-110 OF SECTION 20.50.100 OF CHAPTER 20.50, 'INDUSTRIAL ZONING DISTRICTS,' AND TABLE 20-138 OF SECTION 20.55.203 OF CHAPTER 20.55, 'URBAN VILLAGE AND MIXED USE ZONING DISTRICTS,' AND TABLE 20-140 OF SECTION 20.70.100 OF CHAPTER 20.70, 'DOWNTOWN ZONING REGULATIONS'**

**WHEREAS**, pursuant to the provisions and requirements of the California Environmental Quality Act of 1970, together with related State CEQA Guidelines and Title 21 of the San José Municipal Code (collectively, "CEQA"), the Director of Planning, Building and Code Enforcement has determined that the provisions of this Ordinance do not constitute a project, under File No. PP PP17-008 (General Procedure & Policy Making resulting in no changes to the physical environment); and

**WHEREAS**, the City Council of the City of San José is the decision-making body for this Ordinance; and

**WHEREAS**, this Council has reviewed and considered the "not a project" determination under CEQA prior to taking any approval actions on this Ordinance;

**NOW, THEREFORE,** BE IT ORDAINED BY THE COUNCIL OF THE CITY OF SAN JOSE:

SECTION 1. Section 20.200.360 of Chapter 20.200 of Title 20 of the San José Municipal Code is amended to read as follows:

**20.200.360 Emergency Residential Shelter**

~~A.~~ An "emergency residential shelter" is a building, structure, or series of buildings or structures, where temporary lodging is provided to individuals and households experiencing homelessness, and where on-site supervision is provided whenever such shelter is occupied. For statutory provisions on emergency residential shelters generally, see Gov. Code § 65583 et seq.

SECTION 2. Section 20.80.500 of Chapter 20.80 of Title 20 of the San José Municipal Code is amended to read as follows:

**20.80.500 Emergency Residential Shelter**

A. An emergency residential shelter must provide at least one security guard during the shelter's hours of operation.~~Temporary shelter in an emergency residential shelter may be provided for a period not to exceed sixty (60) days. A Conditional Use Permit may allow an exception to the maximum stay of sixty days for those persons enrolled in drug or alcohol recovery or treatment programs conducted on-site as an incidental use to the shelter program. Such extended stays may not exceed eighteen (18) months.~~

B. All lighting or illumination shall conform with any lighting policy adopted by the City Council.

C~~B~~. Medical assistance, training, counseling, and personal services essential to enable homeless persons to make the transition to permanent shelter may be

provided, with or without meals, as an incident to the operation of an emergency residential shelter.

D~~C~~. A Shelter Management Plan shall be a condition of any Conditional Use Permit approved and should address issues including good neighbor issues, transportation issues, client supervision, client services, and food services.

SECTION 3. Table 20.90 in Section 20.40.100 of Chapter 20.40 of Title 20 of the San José Municipal Code is amended to read as follows:

**20.40.100 Allowed Uses and Permit Requirements**

A. "Permitted" land uses are indicated by a "P" on Table 20-90.

B. "Conditional" uses are indicated by a "C" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100. "Conditional" uses which may be approved only on parcels designated on the land use/transportation diagram of the General Plan, as amended, with a designation that allows residential use are indicated by a "C GP" on Table 20-90. These uses may be allowed in such designated districts, as a part of mixed use residential/commercial, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100.

C. "Conditional" uses requiring City Council approval as the initial decision-making body are indicated by a "CC" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit approved by the City Council as set forth in Chapter 20.100. Applications for these uses shall first be considered by

the Planning Commission at a public hearing of the Commission for the Commission's report and recommendation on the application to the City Council pursuant to the processes set forth in Chapter 20.100.

D. "Special" uses are indicated by an "S" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100. "Special" uses which may be approved only on parcels designated on the land use/transportation diagram of the General Plan, as amended, with a designation that allows residential use are indicated by an "S GP " on Table 20-90. These uses may be allowed in such designated districts, as a part of mixed use residential/commercial, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100.

E. "Administrative" uses are indicated by an "A" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with an Administrative Permit as set forth in Chapter 20.100.

F. "Restricted" land uses are indicated by an "R" on Table 20-90. These uses may occur in such designated districts, as an independent use, but only upon issuance of and in full compliance with a valid and effective zoning code verification certificate as set forth in Chapter 20.100.

G. Land uses not permitted are indicated by a "-" on Table 20-90. Land uses not listed on Table 20-90 are not permitted.

H. When the right column of Table 20-90 includes a reference to a section number or a footnote, the regulations cited in the section number or footnote

applies to the use. In addition, all uses are subject to any other applicable provision of this Title 20 and any other title of the San José Municipal Code.

**Table 20-90**
**Commercial Zoning Districts and**
**Public/Quasi-Public Zoning District Use Regulations**

| Use | Zoning District | | | | | Applicable Sections & Notes |
|---|---|---|---|---|---|---|
| | CO | CP | CN | CG | PQP | |
| General Retail | | | | | | |
| Alcohol, off-sale - beer and/or wine only | - | C | C | C | - | Note 21; Section 20.80.900 |
| Alcohol, off-sale - full range of alcoholic beverages | - | C | C | C | - | Note 21; Section 20.80.900 |
| Alcohol, off-sale - as incidental to a winery, brewery, or distillery | - | S | S | S | - | Note 4 |
| Food, beverages, and groceries | - | P | P | P | S | |
| Nursery, plant | P | P | P | P | P | Note 1 |
| Outdoor vending | - | A | A | A | A | Part 10, Chapter 20.80 |
| Outdoor vending, fresh fruits and vegetables | P | P | P | P | P | Part 10, Chapter 20.80 |
| Pawn shop/broker | - | C | C | C | - | See Title 6 |
| Retail art studio | - | P | P | P | - | Note 21; Section 20.80.1175 |
| Retail bakery | - | P | P | P | - | Note 21 |
| Retail sales, goods, and merchandise | - | P | P | P | - | Note 21 |
| Seasonal sales | P | P | P | P | - | Part 14, Chapter 20.80 |
| Agriculture | | | | | | |
| Aquaculture, aquaponics, and hydroponics | S | S | S | S | S | |
| Certified farmers' market | S | S | S | S | S | Part 3.5, Chapter 20.80 |
| Certified farmers' market, small | P | P | P | P | P | Part 3.5, Chapter 20.80 |

| | | | | | | |
|---|---|---|---|---|---|---|
| Neighborhood agriculture | P | P | P | P | P | Note 19; Title 7 |
| Drive-Through Uses | | | | | | |
| Drive-through uses in conjunction with any use | - | - | C | C | C | |
| Education and Training | | | | | | |
| Child day care center located on an existing School Site or as an incident to a permitted on-site church/religious assembly use involving no building additions or changes to the site | P | P | P | P | P | Note 21 |
| Day care center | S | S | S | S | S | |
| Instructional art studios | - | P | P | P | S | |
| Private instruction, personal enrichment | - | P | P | P | S | |
| School, elementary and secondary (public or private) | C | C | C | C | S | Note 16, Note 20, and Note 21 |
| School, driving (class C & M license) | - | P | P | P | S | Note 2, Note 20, and Note 21 |
| School, post secondary | - | P | P | P | S | Note 3, Note 20, and Note 21 |
| School, trade and vocational | - | C | C | C | S | Note 16, Note 20, and Note 21 |
| Entertainment and Recreation | | | | | | |
| Arcade, amusement game | - | P | P | P | - | Note 21 |
| Health club, gymnasium | - | P | P | P | S | |
| Performing arts rehearsal space | - | P | P | P | - | |
| Poolroom/billiards establishment | - | P | P | P | - | Note 21 |
| Private club or lodge | C | C | C | C | - | |
| Recreation, commercial indoor | - | P | P | P | S | Note 21 |
| Recreation, commercial outdoor | - | C | C | C | C | Note 21 |
| Relocated cardroom | - | - | - | C | - | Section 20.80.1155 |

| | | | | | | |
|---|---|---|---|---|---|---|
| Stadium, 2,000 seats or fewer | - | C | C | C | C | Note 17 |
| Stadium, more than 2,000 seats | - | CC | CC | CC | CC | Note 17 and Note 18 |
| Theater, indoor | - | S | S | S | S | Note 21 |
| Theater, outdoor | - | - | - | S | S | Note 21 |
| Food Services | | | | | | |
| Banquet facility | - | S | S | S | S | |
| Caterer | - | P | P | P | S | |
| Commercial kitchen | - | S | P | P | - | |
| Drinking establishments | - | C | C | C | - | Note 21 |
| Drinking establishments interior to a full-service hotel or motel that includes 75 or more guest rooms | - | P | P | P | - | Section 20.80.475; Note 21 |
| Public eating establishments | - | P | P | P | - | Note 21 |
| Public eating establishment or retail establishment with incidental outdoor dining | - | P | P | P | - | Note 21; Section 20.40.520 |
| Public eating establishment in conjunction with a winery, brewery, or distillery | - | P | P | P | - | |
| Taproom or tasting room with off-sale of alcohol | - | A | A | A | - | Part 5.75, Chapter 20.80 |
| General Services | | | | | | |
| Bail bond establishment - outside main jail area | - | P/S | P | P | - | Note 5; Part 1.5, Chapter 20.80 |
| Bail bond establishment - within main jail area | - | P/S | P | P | - | Note 5 and Note 14; Part 1.5, Chapter 20.80 |
| Bed and breakfast Inn | - | P | P | P | - | Note 21; Part 2, Chapter 20.80 |
| Dry cleaner | - | P | P | P | - | Note 21 |
| Hotel or motel | - | P | P | P | - | Note 21 |
| Single room occupancy (SRO) hotel | - | C | C | C | - | Part 15, Chapter 20.80 |
| Laundromat | - | P | P | P | - | Note 21 |

| | | | | | | |
|---|---|---|---|---|---|---|
| Maintenance and repair, small household appliances | - | P | P | P | - | Note 21 |
| Messenger services | P | P | P | P | - | Note 2 and Note 21 |
| Mortuary and funeral Services | P | P | P | P | - | Note 21 |
| Personal services | - | P | P | P | - | Note 21; Section 20.200.880 |
| Photo processing and developing | - | P | P | P | - | Note 21 |
| Printing and publishing | - | P | P | P | - | Note 21 |
| Social service agency | - | S | S | S | S | |
| Health and Veterinary | | | | | | |
| Animal boarding, indoor | P/- | P | P | P | P/S | Note 8, Section 20.40.120 |
| Animal grooming | P/- | P | P | P | P/S | Note 8 Section 20.40.120 |
| Emergency ambulance service | C | C | C | C | C | |
| Hospital/in-patient facility | C | C | C | C | C | Note 21 |
| Medical cannabis dispensary | - | R | R | R | - | Part 9.75, Chapter 20.80 |
| Cannabis retail storefront | - | R | R | R | - | Part 9.75, Chapter 20.80 |
| Medical cannabis collective dispensary site only | - | R | R | R | - | Part 9.75, Chapter 20.80 |
| Office, medical | P | P | P | P | S | Note 21 |
| Veterinary clinic | - | P | P | P | C | Note 16 |
| Historic Reuse | | | | | | |
| Historic landmark structure reuse | S | S | S | S | S | Part 8.5, Chapter 20.80 |
| Offices and Financial Services | | | | | | |
| Automatic teller machine | P | P | P | P | S | Section 20.80.200 |
| Business support | - | P | P | P | - | Note 21 |
| Financial services | P | P | P | P | - | Note 21 |
| Office, general business | P | P | P | P | S | Note 21; Section 20.40.110 |
| Payday lending establishment | - | R/- | R | R | - | Note 24 Part 12.5, Chapter 20.80 Section 20.200.875 |
| Retail bank | P | P | P | P | - | Note 21 |
| Public, Quasi-Public and Assembly Uses | | | | | | |
| Cemetery | C | C | C | C | C | |

| | | | | | | |
|---|---|---|---|---|---|---|
| Church/religious assembly | S | S | S | S | S | Note 16, Note 20, and Note 21 |
| Construction/ corporation yard associated with public, quasi-public or assembly use or transportation or utility use | - | - | - | - | C | |
| Museums, libraries, parks, playgrounds, or community centers (publicly operated) | P | P | P | P | P | Note 21 |
| Museums, libraries, parks, playgrounds, or community centers (privately operated) | C | C | C | C | S | Note 20 and Note 21 |
| Recycling Uses | | | | | | |
| Reverse vending machine | A | A | A | A | A | Part 13, Chapter 20.80 |
| Small collection facility | A | A | A | A | A | Part 13, Chapter 20.80 |
| Residential | | | | | | |
| ~~Emergency residential shelter within Airport Influence Area~~ | ~~-~~ | ~~S~~ | ~~S~~ | ~~S~~ | ~~S~~ | ~~Section 20.80.500~~ |
| Emergency residential shelter, ~~outside of Airport Influence Area (~~more than ~~100~~ 150 beds~~)~~ | - | S | S | S | S | Section 20.80.500 |
| Emergency residential shelter, ~~outside of Airport Influence Area (100~~ 150 beds or fewer~~)~~ | - | P | P | P | P | Section 20.80.500, Chapter 20.195 |
| Hotel supportive housing | C | C | C | C | C | Note 22; Part 22, Chapter 20.80 |
| Live/work uses | - | S | S | S | - | Note 6; Section 20.80.740 |
| Low barrier navigation center | - | P | P | P | P | Chapter 20.195 |
| Mixed use residential/commercial | - | C/S | C | C GP | - | Note 6, -25 and 26 |
| Permanent supportive housing | - | - | - | - | P | Note 27; Chapter 20.195 |


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|---|---|---|---|---|---|---|
| Residential care facility for seven or more persons | C | C | C | C | C | |
| Residential service facility for seven or more persons | C | C | C | C | C | |
| Single room occupancy, living unit | - | C | C | C | - | Note 6; Part 15, Chapter 20.80 |
| Transportation and Utilities | | | | | | |
| Data center | - | - | - | C | - | Note 21 |
| Commercial vehicle storage | S | - | - | S | S | |
| Common carrier depot | S | - | S | S | S | Note 21 |
| Community television antenna systems | C | C | C | C | C | |
| Off-site, alternating use and alternative parking arrangements | S | S | S | S | S | Section 20.90.200 |
| Parking establishment, off-street | C | - | C | C | - | |
| Short term parking lot for uses or events other than on-site | - | - | - | C | C | Note 7 |
| Television, radio studios without antenna/dishes | - | - | - | C | C | |
| Utility facilities, excluding corporation yards, storage or repair yards and warehouses | C | C | C | C | C | |
| Utility facilities including corporation yards, storage or repair yards and warehouses | - | - | - | - | C | |
| Wireless communication antenna | C | C | C | C | C | Note 23; Sections 20.100.1300, 20.80.1915 |
| Wireless communication antenna, slimline monopole | S | S | S | S | S | Note 23; Sections 20.80.1900, 20.80.1915 |
| Wireless communication antenna, building mounted | P | P | P | P | P | Note 23; Sections 20.80.1910, 20.80.1915 |

| | | | | | | |
|---|---|---|---|---|---|---|
| Utilities, Electrical Power Generation | | | | | | |
| Co-generation facility | S | S | S | S | S | |
| Fuel cells | P | P | P | P | P | |
| Private electrical power generation facility | C | C | C | C | C | Note 2 |
| Solar photovoltaic system | P | P | P | P | P | Section 20.100.610 C.7. |
| Stand-by/backup facilities that do not exceed noise or air standards | A | A | A | P | A | |
| Stand-by/backup facilities that do exceed noise or air standards | C | C | C | C | C | |
| Temporary stand-by/backup | P | P | P | P | P | |
| Vehicle Related Uses | | | | | | |
| Accessory installation, passenger vehicles and pick-up trucks | - | - | C | P | - | |
| Auto dealer, wholesale - no on-site storage | P | P | P | P | - | |
| Car wash, detailing | - | - | C | C | - | |
| Fuel service station or charge station, no incidental service or repair | - | C | C | P | C | Note 15 |
| Fuel service station or charge station with incidental service and repair | - | - | C | P | C | Note 9 and Note 13 |
| Glass sales, installation, and tinting | - | - | C | P | - | Note 13 |
| Leasing (rental) passenger vehicles, pick-up trucks not exceeding twenty-five feet in length, and motorcycles | - | - | C | P | - | Note 2 |
| Sale, brokerage, or lease, commercial vehicles | - | - | C | C | - | Note 13 |

| | | | | | | |
|---|---|---|---|---|---|---|
| Sale or brokerage, passenger vehicles, pick-up trucks not exceeding 25 feet in length, and motorcycles | - | - | S | P | - | Note 12 and Note 13 |
| Sale, vehicle parts | - | - | P | P | - | Note 11 |
| Tires, batteries, lube, oil change, smog check station, air conditioning servicing of passenger vehicles and pick-up trucks | - | - | C | P | - | Note 10 and Note 13 |

**Notes applicable to all commercial districts:**

1. In the CP district, landscaping materials, such as rock, mulch, and sand are limited to prepackaged sales.
2. Classroom use only, no driving courses or onsite storage of vehicles permitted in the CP, CN, and CG Zoning Districts.
3. Includes public and private colleges and universities, as well as extension programs and business schools.
4. Alcohol, off-sales are limited to products manufactured onsite for wineries, breweries, or distilleries.
5. Permitted outside of Urban Village; Special Use Permit in Urban Villages.
6. Mixed use residential/ commercial development may be approved only on parcels designated on the land use/transportation diagram of the General Plan with a designation that allows residential use or through a General Plan or Urban Village Policy that allows mixed-use development on a non-residential parcel.
7. Use must be less than twenty-four hours.
8. Permitted only as incidental to neighborhood agriculture; otherwise prohibited in CO. In PQP the use is permitted only as incidental to neighborhood agriculture; otherwise a Special Use Permit is required
9. Incidental repair includes non-invasive engine service, maintenance, and repair, including but not limited to, air conditioning service, fuel system service, electrical service, coolant system service, tune-up, fluid exchanges, steering and suspension system service, brake system service, transmission adjustment and service, lube, oil change, smog check, diagnostics and vehicle inspections, stock catalytic converters and manifolds, as well as tires, batteries and accessories installation. Does not allow body repair, welding, vehicle restorations, other types of exhaust system repair, the removal of cylinder heads, engines, transmissions/transfer cases and differentials, or painting.
10. Includes non-invasive engine service, maintenance, and repair, including but not limited to, air conditioning service, carburetor and fuel injection system service, electrical service, radiator coolant system service, and tune-up, fluid exchanges, steering and suspension system service, brake system service, transmission adjustment and service, lube, oil change, and

smog check, diagnostics and vehicle inspections, stock catalytic converters and manifolds, as well as tires, batteries and accessories installation. Does not allow body repair, welding, vehicle restorations, other types of exhaust system repair, the removal of cylinder heads, engines, transmissions/transfer cases and differentials, or painting.

11. No outdoor sales areas or dismantling allowed.
12. In the CG district, incidental repair of vehicles requires a Special Use Permit. Incidental repair of vehicles is prohibited in all other commercial districts.
13. All vehicle-related repair, service, and accessory or other installation shall be conducted within a fully enclosed building.
14. Bail bond establishments shall not be located and are prohibited uses on the ground floors of structures located within the main jail area, as that area is defined in Section 20.80.070 of Chapter 20.80 of this Title. Bail bond establishments are allowed as shown on Table 20-90 on other, above-ground floors of structures. All bail bond establishments shall meet all distance requirements specified in Section 20.80.075 of Chapter 20.80 of this Title.
15. Charging stations that are incidental to a separate primary use that do not impact on-site or off-site vehicular circulation, and that serve patrons of the primary use on-site are permitted in all commercial zoning districts.
16. Public schools are subject to the regulations of this Title, subject to the provisions of California Government Code Section 53094 for classroom facilities.
17. Primary uses include sporting events, assembly venues, concerts, and entertainment events of similar character and intensity. Incidental support uses include offices, locker rooms, retail, public eating establishments, drinking establishments, outdoor vending facilities, and other commercial uses of similar character and intensity.
18. Use permit applications for stadiums that consist of more than 2,000 seats and that are in airport influence areas shall be referred to the Santa Clara Airport Land Use Commission prior to approval by the City.
19. Neighborhood agriculture in conformance with this Title is a permitted use that may operate on a site without a permanent building on that site.
20. The City Council is the decision-making body for Special Use Permit appeals for this use pursuant to Section 20.100.220 of this Title.
21. In the PQP public/quasi-public zoning district, the following uses may be allowed as a use supporting and incidental to a primary PQP use:
    a. Offices, retail, public eating establishments, and other commercial uses of similar character and intensity, with approval of a Special Use Permit; and
    b. Drinking establishments, off-sale of alcoholic beverages, arcade amusement games, poolroom/billiards establishments, wineries, breweries, distilleries, and data centers, with approval of a Conditional Use Permit.
22. Hotel supportive housing may be permitted only with a Conditional Use Permit pursuant to Part 22 of Chapter 20.80 and only until December 31, 2026.
23. Certain modifications of existing wireless facilities may be permitted with an Administrative Permit in accordance with Section 20.80.1915 of Chapter 20.80.
24. Restricted outside of Urban Villages; Prohibited in Urban Villages.


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25. Conditional Use Permit required outside of Urban Villages; Special Use Permit in Urban Villages.
26. Permanent supportive housing is allowed as a residential component of mixed use residential/ commercial.
27. Permanent supportive housing is only allowed in the PQP district as 100% of the residential use.
28. 100% deed-restricted affordable housing is a permitted use for residential housing type, and commercial space requirements shall not apply; subject to conformance with General Plan policies and state law mandates. Refer to Chapter 20.195 for information regarding the ministerial approval process.

SECTION 4. Table 20-110 in Section 20.50.100 of Chapter 20.50 of Title 20 of the San José Municipal Code is amended to read as follows:

**20.50.100 Allowed Uses and Permit Requirements**

A. "Permitted" land uses are indicated by a "P" on Table 20-110.

B. "Permitted" uses which may be approved only on property designated on the Land Use/Transportation Diagram of the General Plan, as amended, with the Combined Industrial/Commercial land use designation or, in the case of Hotel or Motel establishments, which may also be approved on property designated on the Land Use/Transportation Diagram of the General Plan, as amended, with the Preferred Hotel Site Overlay, are indicated by a "P GP-" on Table 20-110.

C. "Conditional" uses are indicated by a "C" on Table 20-110. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100.

"Conditional" uses which may be approved only on property designated on the Land Use/Transportation Diagram of the General Plan, as amended, with the

Combined Industrial/Commercial Designation or, in the case of Hotel or/Motel establishments, may also be approved on property designated on the Land Use/Transportation Diagram of the General Plan, as amended, with the preferred Hotel Site Overlay, are indicated by a "C GP-" on Table 20-110. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100.

D. "Conditional" uses requiring City Council approval as the initial decision-making body are indicated by a "CC" on Table 20-110. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit approved by the City Council as set forth in Chapter 20.100. Applications for these uses shall first be considered by the ~~p~~Planning ~~c~~Commission at a public hearing of the Commission for the Commission's report and recommendation on the application to the City Council pursuant to the processes set forth in Chapter 20.100.

"Conditional" uses which may be approved only on property designated on the Land Use/Transportation Diagram of the General Plan, as amended, with the Combined Industrial/Commercial designation are indicated by a "CC GP-" on Table 20-110. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100.

E. "Special" uses are indicated by an "S" on Table 20-110. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100.


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F. "Administrative" uses are indicated by an "A" on Table 20-110. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with an Administrative Permit as set forth in Chapter 20.100.

G. "Restricted" land uses are indicated by an "R GP-" on Table 20-110. These uses may occur in such designated districts, as an independent use, but only upon issuance of and in full compliance with a valid and effective Zoning Code Verification Certificate as set forth in Chapter 20.100. "Restricted" uses may only occur on property designated on the Land Use/Transportation Diagram of the General Plan, as amended, with a Combined/Industrial Commercial, Industrial Park, Light Industrial, or Heavy Industrial designation.

H. Land uses not permitted are indicated by a "-" on Table 20-110. Land uses not listed on Table 20-110 are not permitted.

I. When the right column of Table 20-110 includes a reference to a section number or a footnote, the regulations cited in the section number or footnote applies to the use. In addition, all uses are subject to any other applicable provision of this Title 20 and any other title of the San José Municipal Code.

**Table 20-110**
**Industrial Zoning District Use Regulations**

| Use | Zoning District | | | | | Applicable Sections & Notes |
|---|---|---|---|---|---|---|
| | CIC | TEC | IP | LI | HI | |
| Industry | | | | | | |
| Construction/corporation yard | S | - | - | P | P | |

| | | | | | | |
|---|---|---|---|---|---|---|
| Establishment for the repair, cleaning of household, commercial or industrial equipment or products | - | - | - | P | P | |
| Extraction of minerals from the ground, including quarrying | - | - | - | - | C | |
| Hazardous materials storage facility | - | - | - | C | C | |
| Hazardous waste facility | - | - | - | - | C | |
| Junkyard | - | - | - | - | C | |
| Industrial services | - | - | - | P | P | |
| Laboratory, processing | P | P | P | P | P | |
| Manufacturing and assembly, light | P | P | P | P | - | |
| Manufacturing and assembly, medium | P | P | P | P | P | |
| Manufacturing and assembly, heavy | - | - | - | - | P | |
| Miniwarehouse/ministorage | - | - | - | C | - | |
| Outdoor uses or storage, industrial | - | - | - | S | P | Section 20.50.210 |
| Research and development | P | P | P | - | - | |
| Stockyard, including slaughter | - | - | - | - | C | |
| Warehouse/distribution facility | P | P | P | P | P | Note 2 |
| Wholesale sale establishment | P | S | S | P | P | Note 2 |
| Additional Uses | | | | | | |
| Any use not set forth in Tables 20-30, 20-50, 20-90 | - | - | - | - | C | |
| Any use without a permanent fully enclosed building on-site | C | C | C | S | S | |
| Commercial support | - | P | P/A | - | - | Note 5; Section 20.50.110 |
| Agriculture | | | | | | |
| Aquaculture, aquaponics, and hydroponics | S | - | S | S | S | |
| Certified farmers' market | S | S | S | - | - | Part 3.5, Chapter 20.80 |

| | | | | | | |
|---|---|---|---|---|---|---|
| Certified farmers' market - small | P | P | P | - | - | Part 3.5, Chapter 20.80 |
| Neighborhood agriculture | P | - | P | P | P | |
| Drive-Through Use | | | | | | |
| Drive-through in conjunction with any use | C | - | - | - | - | |
| Education and Training | | | | | | |
| Day care center | S | S | S | - | - | Note 20 |
| Instructional art studios | P | P | - | - | - | Note 14 |
| Private instruction, personal enrichment | P | P | - | - | - | Note 14 |
| School, driving (class A & B license) | P/S | - | - | P | P | Note 23 |
| School, driving (class C & M license) | P/S | - | - | S | S | Note 23 and Note 24 |
| School, elementary and secondary (public or private) | C | C | - | - | - | Note 11 |
| School, post secondary | C | C | C | - | - | |
| School, trade and vocational | S | C | S | S | S | |
| Food Services | | | | | | |
| Caterer | P | P | - | - | - | |
| Commercial kitchen | P | P | P | P | - | Note 2 and Note 14 |
| Drinking establishments | C | C | - | - | - | |
| Drinking establishments interior to a full-service hotel or motel that includes 75 or more guest rooms | P | S/P | P GP | - | - | Note 13 and Note 21; Section 20.80.475 |
| Public eating establishments | P | P | - | C | C | Note 5; Sections 20.50.110, 20.50.113 |
| Outdoor dining, incidental to a public eating establishment | P | S/P | - | C | C | Note 5 and Note 21; Sections 20.50.110, 20.50.113 |
| Taproom or tasting room in conjunction with a winery, brewery, or distillery | A | A | A | A | A | Part 5.75, Chapter 20.80 |
| Winery, brewery, and distillery | P | P | P | P | P | Note 2 and Note 14 |
| General Retail | | | | | | |
| Alcohol, off-sale - beer and/or wine only | C | C | - | - | - | Note 5; Section 20.50.110 |


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|---|---|---|---|---|---|---|
| Alcohol, off-sale - full range of alcoholic beverages | C | C | - | - | - | Note 5; Section 20.50.110 |
| Alcohol, off-sale - as incidental to a winery, brewery, or distillery | A | A | A | A | A | Note 12; Part 5.75, Chapter 20.80 |
| Food, beverages, and groceries | P | P | - | - | - | Note 5 and Note 14; Section 20.50.110 |
| Nursery, plant | P | - | P | C | C | |
| Outdoor vending | A | A | - | A | A | Part 10, Chapter 20.80 |
| Outdoor vending - fresh fruits and vegetables | P | P | P | P | P | Part 10, Chapter 20.80 |
| Warehouse retail | - | C | C | C | C | Note 2; Section 20.50.130 |
| Retail sales, goods, and merchandise | P | P | - | - | - | Note 5 and Note 14; Section 20.50.110 |
| Retail art studio | P | P | - | - | - | Note 14 |
| Retail bakery | P | P | - | - | - | Note 5 and Note 14; Section 20.50.110 |
| Sales, industrial equipment and machinery | P | P | P | P | - | Note 2 |
| Seasonal sales | P | P | P | P | P | Part 14, Chapter 20.80 |
| General Services | | | | | | |
| Crematory | - | - | - | - | C | Note 7 |
| Dry cleaner | P | P | - | - | - | Note 14 |
| Hotel or motel | P | P | C | - | - | Note 13 |
| Laundromat | P | P | - | - | - | Note 14 |
| Mortuary, without funeral services | - | - | - | P | P | |
| Personal services | P | - | - | - | - | Note 5; Section 20.50.110 |
| Printing and publishing | P | P | P | P | P | |
| Social service agency | S | - | - | - | - | |
| Health and Veterinary Services | | | | | | |
| Animal boarding | P/S | - | - | - | - | Note 22 |
| Animal grooming | P | - | - | - | - | |
| Cannabis cultivation business | R GP | - | - | R GP | R GP | Part 9.76, Chapter 20.80 |
| Cannabis delivery only business | R GP | - | R GP | R GP | - | Part 9.76, Chapter 20.80 |
| Cannabis distribution business | R GP | - | R GP | R GP | - | Part 9.76, Chapter 20.80 |
| Cannabis manufacturing (Type 6) business | R GP | - | R GP | R GP | R GP | Part 9.76, Chapter 20.80 |

| | | | | | | |
|---|---|---|---|---|---|---|
| Cannabis processing business | R GP | - | - | R GP | R GP | Part 9.76, Chapter 20.80 |
| Cannabis testing business | - | - | R GP | - | - | Part 9.76, Chapter 20.80 |
| Emergency ambulance service | C | - | - | - | - | |
| Hospital/in-patient facility | C | C | C | - | - | Note 6 |
| Medical cannabis collective | R GP | - | R GP | R GP | R GP | Part 9.76, Chapter 20.80 |
| Medical cannabis collective cultivation site only | R GP | - | R GP | R GP | R GP | Part 9.76, Chapter 20.80 |
| Medical cannabis dispensary | R GP | R GP | - | - | - | Part 9.75, Chapter 20.80 |
| Cannabis retail storefront | R GP | R GP | - | - | - | Part 9.75, Chapter 20.80 |
| Office, medical | P | P | C | - | - | Note 14, Note 5, Section 20.50.110 |
| Veterinary clinic | P | - | - | - | - | |
| Historic Reuse | | | | | | |
| Historic landmark structure reuse | S | S | S | S | S | Part 8.5, Chapter 20.80 |
| Offices and Financial Services | | | | | | |
| Automatic teller machine | P | P | P | P | P | Section 20.80.200 |
| Business support use | P | P | P | - | - | |
| Financial institution | P | P | - | - | - | Note 5; Section 20.50.110 |
| Office, general business | P | P | P | - | - | |
| Office, research and development | P | P | P | - | - | |
| Public, Quasi-Public and Assembly Uses | | | | | | |
| Church/religious assembly | C | - | - | - | - | |
| Recycling Uses | | | | | | |
| Processing facility | - | - | C | S | S | |
| Transfer facility, recycling | - | - | C | S | S | |
| Collection facility, large | - | - | - | - | P | |
| Reverse vending machine | A | A | A | A | A | |
| Collection facility, small | A | A | A | A | A | |
| Residential | | | | | | |
| ~~Emergency residential shelter within Airport Influence Area (more than 50 beds)~~ | ~~C~~ | ~~–~~ | ~~–~~ | ~~–~~ | ~~–~~ | ~~Section 20.80.500~~ |

| | | | | | | |
|---|---|---|---|---|---|---|
| ~~Emergency residential shelter within Airport Influence Area (50 beds or fewer)~~ | ~~P~~ | ~~-~~ | ~~-~~ | ~~-~~ | ~~-~~ | ~~Section 20.80.500~~ |
| Emergency residential shelter~~,~~ ~~outside of Airport Influence Area (~~more than ~~100~~ 150 beds~~)~~ | C | - | - | - | - | Section 20.80.500 |
| Emergency residential shelter~~,~~ ~~outside of Airport Influence Area (100~~ 150 beds or fewer~~)~~ | P | - | - | - | - | Section 20.80.500, Chapter 20.195 |
| Hotel supportive housing | C | C | C | C | C | Note 17; Part 22 of Chapter 20.80 |
| Living quarters, custodian, caretakers | - | - | - | - | C | Note 1 |
| Transportation and Utilities | | | | | | |
| Commercial vehicle storage | S | - | - | S | S | |
| Common carrier depot | S | S | S | S | S | |
| Community television antenna systems | C | C | C | C | C | |
| Data center | S | S | S | S | S | Note 2 |
| Off-site, alternating and alternative use parking arrangements | S | S | S | S | S | Section 20.90.200 |
| Off-street parking establishment | C | - | C | C | C | |
| Television, radio studio | C | C | C | C | C | |
| Utility facilities, excluding corporation yards, storage or repair yards and warehouses | C | C | C | C | C | |
| Wireless communications antenna | C | C | C | C | C | Note 18; Sections 20.100.1300, 20.80.1915 |
| Wireless communications antenna, slimline monopole | S | S | S | S | S | Note 18; Sections 20.80.1900, 20.80.1915 |
| Wireless communications antenna, building mounted | P | P | P | P | P | Note 18; Sections 20.80.1910, 20.80.1915 |
| Utilities, Power Generation | | | | | | |
| Base load power plant | - | - | - | - | C | |
| Co-generation facility | S | S | S | S | S | |

| | | | | | | |
|---|---|---|---|---|---|---|
| Private electrical power generation facility | C | C | C | C | C | |
| Solar photovoltaic power system | P | P | P | P | P | Section 20.100.610 C.7. |
| Stand-by/backup facilities that do not exceed noise and air standards | P | P | P | P | P | |
| Stand-by/backup facilities that do exceed noise and air standards | C | C | C | C | C | |
| Stationary peaking power plant | - | - | - | C | C | |
| Temporary stand-by or backup electrical power generation facility | P | P | P | P | P | |
| Transportable peaking power plant | - | - | - | C | C | |
| Vehicle Related Uses | | | | | | |
| Auto dealer, wholesale, no on-site storage | P | P | P | - | - | |
| Car wash, detailing | C | C | - | - | - | |
| Fuel service station or charge station, no incidental service or repair | P | - | C | - | - | Note 8 |
| Fuel service station or charge station with incidental service and repair | P | - | - | - | - | Note 3 |
| Repair and cleaning of vehicles | C | - | - | P | P | Note 4 |
| Sale, brokerage, or lease (rental) of passenger vehicles, pick-up trucks not exceeding 25 feet in length, and motorcycles | S | - | - | - | - | Note 10 |
| Sale or lease of commercial trucks, buses, trailers, campers, boats, mobilehomes, construction equipment | C | - | - | C | - | |
| Sale, vehicle parts | P | - | - | P/S | - | Note 9 |
| Vehicle tow yard | - | - | - | C | S | Note 19 |

| | | | | | | |
|---|---|---|---|---|---|---|
| Vehicle wrecking, including sales of parts | - | - | - | - | C | |
| Warehouse retail indoor sale of passenger vehicles, pick-up trucks not exceeding 25 feet in length, and motorcycles | C | C | C | C | C | Note 2; Section 20.50.140 |

**Notes:**

1. Site must be seven (7) acres or more.
2. In TEC, only allowed in existing buildings with a valid certificate of occupancy as of (the effective date of this ordinance). Not allowed more than 5% expansion of the existing building floor area ratio for the portion of the building occupied by the use subject to this note.
3. Incidental repair includes air conditioning service, carburetor and fuel injection service, electrical service, radiator service, and tune-up, lube, oil change, and smog check, as well as tires, batteries, and accessories installation. Does not allow body repair or painting.
4. All vehicle-related repair, service, and accessory or other installation, excepting the cleaning of vehicles, shall be conducted within a fully enclosed Building.
5. Commercial support uses are subject to and limited by Section 20.50.110. Commercial support uses subject to Section 20.50.110 A. are permitted (P) uses. Commercial support uses subject to Section 20.50.110 B. in the primary Industrial Park Building(s) require an administrative (A) permit. Commercial support uses subject to Section 20.50.110 C. in a single-use Building require a Development Permit. Public Eating Establishments in the LI or HI districts are limited to a maximum of six hundred fifty (650) gross square feet in size.
6. Refer to the General Plan for criteria to determine if the use is permissible at the proposed location.
7. Crematories shall be separated by at least five hundred (500) linear feet from residential uses, schools, and day care centers, which distance(s) shall be measured from the nearest points of the Parcel boundary on which the crematory is proposed and the Parcel boundary on which the residential, school or day care center use is located.
8. Charge Stations that are incidental to a separate primary use, that do not impact on-site or off-site vehicular circulation, and that serve patrons of the primary use on-site are Permitted in all Industrial Zoning Districts.
9. Vehicle parts sales are permitted in the LI district when the total floor area dedicated to retail display and open to the public occupies no more than fifteen (15%) percent of the gross floor area of the individual tenant space. Vehicle parts sales establishments that exceed fifteen (15%) percent of the gross floor area of the individual tenant space are subject to a Special Use Permit.
10. Any incidental vehicle-related repair, service, and accessory or other installation, excepting the cleaning of vehicles, shall be conducted within a fully enclosed Building.
11. Public schools are subject to the regulations of this Title, subject to the provisions of California Government Code Section 53094 for classroom facilities.

12. Off-sale of alcoholic beverages. The total square footage of alcoholic beverages on display in a retail area and the total square footage of retail floor area in which alcoholic beverages are displayed for sale shall be the lesser of the following:
    a. Two hundred fifty (250) gross square feet; or
    b. Five (5%) percent of the winery's, brewery's, or distillery's entire gross floor area; and any and all alcoholic beverages made available for retail sale shall be limited only to those alcoholic beverages manufactured and produced on-site.
13. At least two hundred (200) rooms and four (4) or more stories in height are required for Hotels located in the TEC Transit Employment Center Zoning District.
14. The use is allowed in the TEC district only on the first or second floor of a building containing another permitted, special, or conditional use of the TEC Zoning District that is not subject to this note. Not allowed as a standalone use.
15. Primary uses include sporting events, large assembly, concerts, and entertainment events of similar character and intensity. Incidental support uses include offices, locker rooms, retail, Public Eating Establishments, Drinking Establishments, Outdoor Vending Facilities, and other commercial uses of similar character and intensity.
16. Use permit applications for stadiums that consist of more than two thousand (2,000) seats and that are in an airport influence area shall be referred to the Santa Clara Airport Land Use Commission prior to approval by the City.
17. Hotel Supportive Housing may be Permitted only with a Conditional Use Permit pursuant to Part 22 of Chapter 20.80 and only until December 31, 2026.
18. Certain modifications of existing Wireless Facilities may be Permitted with an Administrative Permit in accordance with Section 20.80.1915 of Chapter 20.80.
19. Vehicle auctions are permitted as part of a Vehicle tow yard.
20. Day care centers are allowed in the IP and TEC Zoning Districts as incidental uses to the primary TEC or IP development, not as a standalone use.
21. Special use permit required if within 150 feet of residentially used or zoned lot; Permitted if not within 150 feet of residentially used or zoned lot.
22. Outdoor Animal Boarding is allowed through a Special use permit in the CIC Zoning District.
23. Permitted in the CIC district for classroom use only, outside vehicle storage requires a Special use permit.
24. Only schools which offer driving instruction for commercial vehicles are permitted in this zoning district.

SECTION 5. Section 20.55.203 of Chapter 20.55 of Title 20 of the San José Municipal Code is amended to read as follows:

## 20.55.203 Urban Village and Mixed Use Zoning District Use Regulations

**Table 20-138**
**Urban Village and Mixed Use Zoning District Use Regulations**

| Use | Zoning District | | | | | | Applicable Sections & Notes |
|---|---|---|---|---|---|---|---|
| | UVC | UV | MUC | MUN | UR | TR | |
| Residential | | | | | | | |
| One-family dwelling | - | - | - | P | P | P | Note 6; Note 25 |
| Two-family dwelling | - | - | - | P | P | P | Note 6; Note 25 |
| Accessory dwelling unit | - | P | P | P | P | P | Part 4.5, Chapter 20.30 |
| Mixed use development | - | P | P | P | P | P | Note 20; Note 25<br>Chapter 20.195 |
| Multiple dwelling | - | P | P | P | P | P | Note 20; Note 25<br>Chapter 20.195 |
| Co-living community | - | S | C | C | S | S | Part 3.73, Chapter 20.80 |
| Guesthouse | - | S | - | S | S | S | |
| ~~Emergency residential shelter within Airport Influence Area~~ | ~~-~~ | ~~S~~ | ~~S~~ | ~~S~~ | ~~S~~ | ~~S~~ | ~~Section 20.80.500~~ |
| Emergency residential shelter~~,~~ ~~outside of Airport Influence Area~~ ~~(~~more than ~~100~~ 150 beds~~)~~ | - | S | S | S | S | S | Section 20.80.500 |
| Emergency residential shelter~~,~~ ~~outside of Airport Influence Area (100~~ 150 beds or fewer~~)~~ | - | P | P | P | P | P | Section 20.80.500, Chapter 20.195 |
| Home Occupation | - | P | P | P | P | P | Part 9, Chapter 20.80 |
| Hotel supportive housing | C | - | C | - | - | - | Note 17;<br>Part 22, Chapter 20.80 |
| Live/work uses | - | S | S | S | S | S | Section 20.80.740 |
| Low barrier navigation center | - | P | P | P | P | P | Chapter 20.195 |




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| Permanent supportive housing | - | P | P | P | P | P | Note 20; Chapter 20.195 |
| Residential accessory structures or buildings | - | P | P | P | P | P | Part 5, Chapter 20.30 |
| Residential care facility for six or fewer persons | - | P | P | P | P | P | |
| Residential care facility for seven or more persons | - | C | C | C | C | C | |
| Residential service facility for six or fewer persons | - | P | P | P | P | P | |
| Residential service facility for seven or more persons | - | C | C | C | C | C | |
| Single room occupancy, living unit | - | - | C | - | - | - | Note 25; Part 15, Chapter 20.80 |
| General Retail | | | | | | | |
| Alcohol, off-sale - beer and/or wine only | C | C | C | C | C | C | Section 20.80.900 |
| Alcohol, off-sale - full range of alcoholic beverages | C | C | C | C | C | C | Section 20.80.900 |
| Alcohol, off-sale - as incidental to a winery, brewery, or distillery | A | A | A | A | A | A | Note 1; Part 5.75, Chapter 20.80 |
| Food, beverages, and groceries | P | P | P | P | P | P | |
| Nursery, plant | P | P | P | P | P | P | Note 2 |
| Outdoor vending | A | A | A | A | A | A | Part 10, Chapter 20.80 |
| Outdoor vending, fresh fruits and vegetables | P | P | P | P | P | P | Part 10, Chapter 20.80 |
| Pawnshop/broker | C | - | C | - | - | - | See Title 6 |
| Retail art studio | P | P | P | P | P | P | Section 20.80.1175 |

| | | | | | | | |
|---|---|---|---|---|---|---|---|
| Retail bakery | P | P | P | P | P | P | |
| Retail sales, goods, and merchandise | P | P | P | P | P | P | |
| Seasonal sales | P | P | P | P | P | P | Part 14, Chapter 20.80 |
| Agriculture & Open Space | | | | | | | |
| Aquaculture, aquaponics, and hydroponics | S | S | S | S | S | S | |
| Certified farmers' market | S | S | S | S | S | S | Part 3.5, Chapter 20.80 |
| Certified farmers' market, small | P | P | P | P | P | P | Part 3.5, Chapter 20.80 |
| Community gardens | P | P | P | P | P | P | |
| Neighborhood agriculture | P | P | P | P | P | P | Note 16;<br>Title 7 |
| Education & Training | | | | | | | |
| Child day care center located on an existing School Site or as an incident to a permitted on-site church/religious assembly use involving no building additions or changes to the site | P | P | P | P | P | P | Note 5 |
| Day care center | S | S | S | S | S | S | Note 5 |
| Instructional art studios | P | P | P | P | P | P | |
| Private instruction, personal enrichment | P | P | P | P | P | P | |
| School, elementary and secondary (public or private) | C | C | C | C | C | C | Note 13 |
| School, driving (class C & M license) | P | P | P | P | P | P | Note 3 |

| | | | | | | | |
|---|---|---|---|---|---|---|---|
| School, post secondary | P | P | P | P | P | P | |
| School, trade and vocational | P/S | P/S | P/S | P/S | P/S | P/S | Note 4 and Note 13 |
| Entertainment and Recreation | | | | | | | |
| Arcade, amusement game | P | P | P | P | P | P | |
| Health club, gymnasium | P | P | P | P | P | P | |
| Performing arts rehearsal space | P | P | P | P | P | P | |
| Poolroom/billiards establishment | P | P | P | P | P | P | |
| Private club or lodge | S | S | S | S | S | S | |
| Recreation, commercial indoor | P | P | P | P | P | P | |
| Recreation, commercial outdoor | - | S | - | - | - | - | |
| Stadium, 2,000 seats or fewer | C | C | - | - | - | - | |
| Stadium, more than 2,000 seats | CC | CC | - | - | - | - | Note 14 and Note 15 |
| Theater, indoor | S | S | S | - | S | S | |
| Theater, outdoor | S | S | S | - | S | S | |
| Food Services | | | | | | | |
| Banquet facility | S | S | S | S | S | S | |
| Caterer | P | P | P | P | P | P | |
| Commercial kitchen | P | P | P | - | S | S | |
| Drinking establishments | S | S | S | - | S | S | |
| Drinking establishments interior to a full-service hotel or motel that includes 75 or more guest rooms | P | P | P | P | P | P | Section 20.80.475 |
| Public eating establishments | P | P | P | P | P | P | |


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| Public eating establishment or retail establishment with incidental outdoor dining | P | P | P | P | P | P | Section 20.40.520 |
| Public eating establishment in conjunction with a winery, brewery, or distillery | P | P | P | P | P | P | Part 5.75, Chapter 20.80 |
| Taproom or tasting room in conjunction with a winery, brewery, or distillery | A | A | A | A | A | A | Part 5.75, Chapter 20.80 |
| Taproom or tasting room with off-sale of alcohol | A | A | A | A | A | A | Part 5.75, Chapter 20.80 |
| General Services | | | | | | | |
| Bail Bonds Establishment | S | S | S | - | S | S | Note 11;<br>Part 1.5, Chapter 20.80 |
| Bed and breakfast inn | P | P | P | P | P | P | Part 2, Chapter 20.80 |
| Dry cleaner | P | P | P | P | P | P | |
| Hotel or motel | P | P | P | P | P | P | |
| Single room occupancy (SRO) hotel | C | C | C | C | C | C | Part 15, Chapter 20.80 |
| Laundromat | P | P | P | P | P | P | |
| Maintenance and repair, small household appliances | P | P | P | P | P | P | |
| Messenger services | P | P | P | P | P | P | |
| Mortuary and funeral services | P | P | P | P | P | P | |
| Personal services | P | P | P | P | P | P | Section 20.200.880 |
| Bail Bonds Establishment | S | S | S | - | S | S | |
| Bed and breakfast inn | P | P | P | P | P | P | |

| | | | | | | | |
|---|---|---|---|---|---|---|---|
| Health and Veterinary Services | | | | | | | |
| Animal boarding, indoor | P | P | P | P | P | P | Note 7 |
| Animal grooming | P | P | P | P | P | P | Note 7 |
| Cannabis retail storefront | R | R | R | - | R | R | Part 9.75, Chapter 20.80 |
| Emergency ambulance service | C | C | C | - | C | C | |
| Hospital/in-patient facility | C | C | C | - | C | C | |
| Medical cannabis collective dispensary site only | R | R | R | - | R | R | Part 9.75, Chapter 20.80 |
| Medical cannabis dispensary | R | R | R | - | R | R | Part 9.75, Chapter 20.80 |
| Office, medical | P | P | P | P | P | P | |
| Veterinary clinic | P | P | P | P | P | P | |
| Historic Reuse | | | | | | | |
| Historic landmark structure reuse | S | S | S | S | S | S | Part 8.5, Chapter 20.80 |
| Industry and Manufacturing | | | | | | | |
| Laboratory, processing | P | P | P | - | - | - | |
| Manufacturing and assembly, light | P | P | P | - | - | - | Note 22 |
| Office, research and development | P | P | P | - | S | S | Note 21 |
| Offices and Financial Services | | | | | | | |
| Automatic teller machine | P | P | P | P | P | P | Section 20.80.200 |
| Business support | P | P | P | P | P | P | |
| Office, general business | P | P | P | P | P | P | |
| Retail bank / Financial services | P | P | P | P | P | P | |
| Public, Quasi-Public and Assembly Uses | | | | | | | |
| Cemetery | C | C | C | C | C | C | |
| Church/religious assembly | S | S | S | S | S | S | |

| | | | | | | | |
|---|---|---|---|---|---|---|---|
| Museums, libraries, parks, playgrounds, or community centers (publicly operated) | P | P | P | P | P | P | |
| Museums, libraries, parks, playgrounds, or community centers (privately operated) | S | S | S | S | S | S | |
| Recycling Uses | | | | | | | |
| Reverse vending machine | A | A | A | A | A | A | Part 13, Chapter 20.80 |
| Small collection facility | A | A | A | A | A | A | Part 13, Chapter 20.80 |
| Transportation and Utilities | | | | | | | |
| Community television antenna systems | C | C | C | C | C | C | |
| Off-site, alternating use and alternative parking arrangements | S | S | S | - | S | S | Section 20.90.200 |
| Parking establishment, off-street | S | - | S | - | - | - | Note 23 |
| Television, radio studios without antenna/dishes | C | C | C | - | - | - | |
| Utility facilities, excluding corporation yards, storage or repair yards and warehouses | C | C | - | - | - | - | |
| Utility facilities including corporation yards, storage or repair yards and warehouses | - | - | - | - | - | - | |

| | | | | | | | |
|---|---|---|---|---|---|---|---|
| Wireless communication antenna | C | C | C | C | C | C | Note 18; Sections 20.100.1300, 20.80.1915 |
| Wireless communication antenna, slimline monopole | S | S | S | S | S | S | Note 19; Sections 20.80.1900, 20.80.1915 |
| Wireless communication antenna, building mounted | P | P | P | P | P | P | Note 19; Sections 20.80.1910, 20.80.1915 |
| Utilities, Electrical Power Generation | | | | | | | |
| Co-generation facility | S | S | S | S | S | S | |
| Fuel cells | P | P | P | P | P | P | |
| Private electrical power generation facility | C | C | C | C | C | C | |
| Solar photovoltaic system | P | P | P | P | P | P | Section 20.100.610 C.7. |
| Stand-by/backup facilities that do not exceed noise or air standards | A | A | A | A | A | A | |
| Stand-by/backup facilities that do exceed noise or air standards | C | C | C | - | - | - | |
| Temporary stand-by/backup | P | P | P | P | P | P | |
| Vehicle Related Uses | | | | | | | |
| Sale or leasing of vehicles, showroom only | P | P | P | - | - | - | Note 24 |
| Sale, vehicle parts | S | S | S | - | S | S | Note 9 |
| For all other vehicle related uses refer to the General Use Regulations as described in ~~s~~Section 20.55.201 (K) | | | | | | | |

**Notes:**

1. Alcohol, off-sales are limited to products manufactured on-site for wineries, breweries, or distilleries.

2. Landscaping materials, such as rock, mulch, and sand are limited to prepackaged sales.

3. Classroom use only, no driving courses or on-site storage of vehicles permitted in UVC, UV, MUC, MUN, UR or TR Zoning Districts.

4. Indoor uses related to trade or vocational schools are Permitted, any outdoor uses will require a Special Use Permit.

5. If the Daycare use exceeds the noise standards, as set forth in Chapter 20.40 in Section 20.40.600, it will require a Special Use Permit.

6. One-family dwellings or two-family dwellings are allowed as part of a larger development which meets the minimum density requirement in the UR and TR zoning districts.

7. Except as an incidental use to neighborhood agriculture, all uses involving any type of care for animals, including but not limited to grooming, boarding, medical care, must be conducted wholly inside a building.

8. Incidental repair includes non-invasive engine service, maintenance, and repair, including but not limited to, air conditioning service, fuel system service, electrical service, coolant system service, tune-up, fluid exchanges, steering and suspension system service, brake system service, transmission adjustment and service, lube, oil change, smog check, diagnostics and vehicle inspections, stock catalytic converters and manifolds, as well as tires, batteries and accessories installation. Does not allow body repair, welding, vehicle restorations, other types of exhaust system repair, the removal of cylinder heads, engines, transmissions/transfer cases and differentials, or painting.

9. No outdoor sales areas or dismantling allowed.

10. All vehicle-related repair, service, and accessory or other installation shall be conducted within a fully enclosed building.

11. Bail bond establishments shall not be located and are prohibited uses on the ground floors of structures located within the main jail area, as that area is defined in Section 20.80.070 of Chapter 20.80 of this Title. Bail bond establishments are allowed as shown on Table 20-138 on other, above-ground floors of structures. All bail bond establishments shall meet all distance requirements specified in Section 20.80.075 of Chapter 20.80 of this Title.

12. Charging stations that are incidental to a separate primary use that do not impact on-site or off-site vehicular circulation, and that serve patrons of the primary use on-site are permitted in all commercial zoning districts.

13. Public schools are subject to the regulations of this Title, subject to the provisions of California Government Code Section 53094 for classroom facilities.

14. Primary uses include sporting events, assembly venues, concerts, and entertainment events of similar character and intensity. Incidental support uses include offices, locker rooms, retail, public eating establishments, drinking establishments, outdoor vending facilities, and other commercial uses of similar character and intensity.

15. Use permit applications for stadiums that consist of more than 2,000 seats and that are in airport influence areas shall be referred to the Santa Clara Airport Land Use Commission prior to approval by the City.

16. Neighborhood agriculture in conformance with this Title is a permitted use that may operate on a site without a permanent building on that site.

17. Hotel supportive housing may be permitted only with a Conditional Use Permit pursuant to Part 22 of Chapter 20.80 and only until December 31, 2026.

18. Certain modifications of existing wireless facilities may be permitted with an Administrative Permit in accordance with Section 20.80.1915 of Chapter 20.80.

19. Conditional Use Permit required outside of Urban Villages; Special Use Permit in Urban Villages.

20. Permanent supportive housing is a permitted use as mixed use or residential-only development. For information regarding the ministerial approval process, refer to Chapter 20.195 for more information.

21. Research and Development is allowed through a Special Use Permit in TR and UR if the use on site does not involve activity that would create noxious sounds, smells, or vibrations.

22. For the purposes of Chapter 20.55, Food and Beverage manufacturing is considered to be permitted under the Manufacturing and Assembly, light use, if it meets all of the following criteria:

    a. The use must include a retail space which is accessible from and adjacent to the street and open to the public during regular business hours.

    b. Odors produced on-site shall not have a material negative effect on other businesses or properties in the area.

23. Surface parking which does not serve a use contained on the same site or under the same Development Permit is not permitted. Standalone parking structures are allowed under the following conditions:

    a. Parking structures shall comply with the Citywide Design Standards and Guidelines.

    b. In addition, the parking facility must meet one of the following criteria:

        i. The parking facility shall be designed as a structured aboveground parking facility with ground floor commercial spaces, which are located along public rights-of-way or public open spaces, and which comply with Citywide Design Standards and Guidelines for ground floor commercial spaces.

        ii. The parking facility shall be designed as an underground parking facility with a POPOS at grade level, which is open to the public 24 hours a day, and which complies with the Citywide Design Standards and Guidelines.

24. In UVC and MUC, sale and leasing of vehicles is permitted in the form of an interior showroom only with no on-site storage of vehicles other than display models in the showroom.

25. May be used as Transitional Housing.

26. 100% deed-restricted affordable housing is a permitted use for residential housing type that meet minimum density requirement in the UR and TR zoning districts, and commercial space requirements shall not apply; subject to conformance with General Plan policies and state law mandates. Refer to Chapter 20.195 for information regarding the ministerial approval process.

SECTION 6. Table 20-140 in Section 20.70.100 of Chapter 20.70 of Title 20 of the San José Municipal Code is amended to read as follows:


**DRAFT--Contact the Office of the City Clerk at (408) 535-1260 or CityClerk@sanjoseca.gov for final document.**

## 20.70.100 Allowed Uses and Permit Requirements

A. "Permitted" land uses are indicated by a "P" on Table 20-140.

B. "Permitted" uses which may be approved only on parcels within the downtown zoning districts which are designated on the land use/transportation diagram of the General Plan, as amended, with a land use designation that allows some residential use, are indicated by a "PGP" on Table 20-140. These uses may be allowed on such downtown zoning district parcels, but only in compliance with the General Plan land use restrictions related to residential use.

C. "Conditional" uses requiring ~~p~~Planning ~~c~~Commission approval as the initial decision-making body are indicated by a "C" on Table 20-140. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit approved by the Planning Commission, or City Council on appeal, as set forth in Chapter 20.100.

D. "Conditional" uses which may be approved only on parcels within the downtown zoning districts which are designated on the land use/transportation diagram of the General Plan, as amended, with a land use designation that allows some residential use, are indicated by a "CGP" on Table 20-140. These uses may be allowed on such downtown zoning district parcels, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100; and in compliance with the General Plan land use restrictions related to residential use.

E. "Special" uses are indicated by an "S" on Table 20-140. These uses may be allowed in such designated districts, as an independent use, but only upon

issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100.

F. "Special" uses which may be approved only on parcels within the downtown zoning districts which are designated on the land use/transportation diagram of the General Plan, as amended, with a land use designation that allows some residential use, are indicated by an "SGP" on Table 20-140. These uses may be allowed on such downtown zoning district parcels, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100; and in compliance with the General Plan land use restrictions related to residential use.

G. "Administrative" uses are indicated by an "A" on Table 20-140. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with an Administrative Permit as set forth in Chapter 20.100.

H. "Restricted" land uses are indicated by an "R" on Table 20-140. These uses may occur in such designated districts, as an independent use, but only upon issuance of and in full compliance with a valid and effective zoning code verification certificate as set forth in Chapter 20.100.

I. Land uses not permitted are indicated by a "-" on Table 20-140. Land uses not listed on Table 20-140 are not permitted.

J. The column of Table 20-140, under the heading "Additional Use Regulations for the Ground Floor Active Use Area Overlay", identifies further regulations on the uses of ground-floor building space within a portion of the DC zoning district. The portion of the DC downtown primary commercial district included in the Active Use Area Overlay is described in Section 20.70.520.

K. When the right column of Table 20-140 includes a reference to a section number or a footnote, the regulations cited in the section number or footnote apply to the use. In addition, all uses are subject to any other applicable provision of this Title 20 and any other title of the San José Municipal Code.

**Table 20-140**
**Downtown Zoning Districts Use Regulations**

| Use | Zoning District | | Applicable Notes & Regulations | |
|---|---|---|---|---|
| | DC | DC-NT1 | Additional Use Regulations for the AUA Overlay | Applicable to All Downtown Districts |
| **Offices and Financial Services** | | | | |
| Automatic teller machine | P | P | P | Note a; Section 20.80.200 |
| Business support use | P | P | P | |
| Financial services | P | P | P | Note b |
| Retail bank | P | P | P | Note b |
| Offices, business and administrative | P | P | S | Section 20.70.110 |
| Payday lending establishment | R | R | - | Part 12.5, Chapter 20.80; Section 20.80.875 |
| Research and development | P | P | - | |
| **General Retail** | | | | |
| Alcohol, off-sale—beer and/or wine only | C | C | C | Section 20.80.900 |
| Alcohol, off-sale—full range of alcoholic beverages | C | C | C | Section 20.80.900 |
| Alcohol, off-sale—as incidental to a winery, brewery, or distillery | A | A | A | Note 11; Part 5.75, Chapter 20.80 |


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| | | | | |
|---|---|---|---|---|
| Food, beverages, and groceries | P | P | P | |
| Outdoor vending | A | A | A | Note b; Part 10, Chapter 20.80 |
| Outdoor vending—fresh fruits and vegetables | P | P | P | Note b; Part 10, Chapter 20.80 |
| Pawn shop or pawn broker, incidental to a retail jewelry store | C | C | C | Note b; Chapter 6.52 |
| Retail bakery | P | P | P | |
| Retail art studio | P | P | P | |
| Retail sales, goods, and merchandise | P | P | P | Note c |
| Seasonal sales | P | P | P | Part 14, Chapter 20.80 |
| **Agriculture** | | | | |
| Certified farmers' market | P | P | P | Part 3.5, Chapter 20.80 |
| Certified farmers' market, small | P | P | P | Part 3.5, Chapter 20.80 |
| Neighborhood agriculture | P | P | P | |
| **Education and Training** | | | | |
| Day care center | P | P | P | Note b |
| Instructional art studios | P | P | P | |
| Private instruction, personal enrichment | P | P | P | Note b |
| School, elementary—grades K-8 (public or private -) | C | C | C | Note b |
| School, secondary—grades 9-12 (-public or private) | C | C | C | Note b |
| School, post-secondary | P | P | - | |
| School, trade and vocational | P | P | P | Note b |
| **Entertainment and Recreation Related** | | | | |
| Arcade, amusement game | P | - | P | Note b |
| Health club, gymnasium | P | P | P | |
| Lighting display | A/S | A/S | A/S | Section 20.70.150 |
| Theater, indoor | P | P | P | |

| | | | | |
|---|---|---|---|---|
| Poolroom/billiards establishment | P | - | P | |
| Private club or lodge | P | P | - | |
| Recreation commercial/indoor | P | P | P | |
| **Food Services** | | | | |
| Banquet—facility | P | P | P | |
| Caterer | P | P | P | Note b |
| Drinking establishments | S | C | S | |
| Drinking establishments with an approved maximum occupancy load of over 250 persons and that operate between 12:00 midnight and 6:00 a.m. | CC | - | CC | Note 5 |
| Drinking establishments interior to a full-service hotel or motel with 75 or more guest rooms | P | P | - | Section 20.80.475 |
| Public eating establishments | P | P | P | Note 7 |
| Public eating establishment in conjunction with a winery, brewery, or distillery | P | P | P | |
| Taproom or tasting room in conjunction with a winery, brewery, or distillery | A | S | A | Part 5.75, Chapter 20.80 |
| Taproom or tasting room with off-sale of alcohol | A | A | A | Part 5.75, Chapter 20.80 |
| General Services | | | | |
| Bed and breakfast inn | P | P | P | Note b; Part 2, Chapter 20.80 |
| Hotel or motel | P | P | P | |
| Laundromat | P | P | P | Note b |
| Maintenance and repair of small household appliances | P | P | P | Note b |
| Personal services | P | P | P | Note d |
| Printing and publishing | P | P | P | Note b and Note f |

| | | | | |
|---|---|---|---|---|
| **Health and Veterinary Services** | | | | |
| Animal grooming | P | P | P | Note b |
| Animal boarding, indoor | P | P | P | Note b |
| Cannabis retail storefront | R | R | R | Part 9.75, Chapter 20.80 |
| Emergency ambulance service | C | - | - | |
| Hospital/in-patient facility | C | - | - | |
| Medical cannabis dispensary | R | R | R | Part 9.75, Chapter 20.80 |
| Office, medical | P | P | P | Note b |
| Veterinarian | P | P | P | Note b |
| **Historic Reuse** | | | | |
| Historic landmark structure reuse | S | S | S | Part 8.5, Chapter 20.80 |
| **Public, Quasi-Public and Assembly Uses** | | | | |
| Auditorium | C | - | C | |
| Church/religious assembly | P | P | - | |
| Information center | P | P | P | |
| Museums and libraries | P | - | P | |
| Parks, playgrounds, or community centers | P | P | S | |
| **Recycling Uses** | | | | |
| Reverse vending machine | S | S | - | Part 13, Chapter 20.80 |
| Small collection facility | S | S | - | Part 13, Chapter 20.80 |
| **Residential GP** | | | | |
| ~~Residential~~ Emergency residential shelter, more than 150 beds | CGP | - | - | Note e; Section 20.80.500 |
| Emergency residential shelter, 150 beds or fewer | PGP | - | | Note e; Section 20.80.500, Chapter 20.195 |
| Live/work uses | PGP | SGP | | Note e; Section 20.70.120 |
| Low barrier navigation center | PGP | PGP | - | Chapter 20.195 |

| | | | | |
|---|---|---|---|---|
| Permanent supportive housing | PGP | PGP | - | Chapter 20.195 |
| Residential, multiple dwelling | PGP | PGP | - | Note 12, Note 13, and Note e |
| Co-living community | S | S | - | Note e; Part 3.75, Chapter 20.80 |
| Residential care facility for seven or more persons | CGP | CGP | - | Note e |
| Residential services facility, for seven or more persons | CGP | CGP | - | Note e |
| Hotel supportive housing | CGP | CGP | - | Note 9 and Note e; Part 22 of Chapter 20.80 |
| Single room occupancy (SRO) living unit facility | SGP | SGP | - | Note 12 and Note e; Part 15, Chapter 20.80 |
| Single room occupancy (SRO) residential hotel | S | S | - | Note 12 and Note e; Part 15, Chapter 20.80 |
| **Residential Accessory Uses GP** | | | | |
| Accessory buildings and accessory structures | PGP | PGP | - | Note 1 |
| **Transportation and Communication** | | | | |
| Community television antenna systems | C | - | - | |
| Off-site and alternating use parking arrangements | P | P | P | Section 20.90.200 |
| Off-street parking establishment | P | P | - | |
| Short term parking lot for uses or events other than on-site | S | S | - | |
| Radio and television studios | P | - | - | |
| Wireless communications antenna | S | - | - | Note 8; Sections 20.80.1900, 20.80.1915 |

| | | | | |
|---|---|---|---|---|
| Wireless communications antenna, building mounted | P | - | - | Note 8; Sections 20.80.1900, 20.80.1915 |
| **Utilities, Power Generation** | | | | |
| Private electrical power generation facility | C | C | - | |
| Solar photovoltaic power system | P | P | - | Section 20.100.160 C.7. |
| Stand-by/backup facilities that do not exceed noise or air standards | A | A | - | |
| Temporary stand-by/backup generators | P | P | - | |
| **Vehicle Related Uses** | | | | |
| Car wash, detailing | P | - | - | |
| Fuel service station or charge station, no incidental service or repair | P | - | - | Note 6 |
| Fuel service station or charge station, with incidental service or repair | P | - | - | Note 2 |
| Sale and lease, vehicles and equipment (less than one ton) | P | - | - | Note 3 |
| Sale and lease, Zero Emission Vehicles and equipment | P | - | - | Note 10 Zero Emission Vehicles and Equipment Defined by California Code of Regulations, Title 13, Section 1962.2(i)(18) |
| Tires, batteries, accessories, lube, oil change, smog check station, air conditioning | P | - | - | Note 4 |
| Sale, vehicle parts, new | P | - | - | |

**Notes applicable to the Downtown Primary Commercial (DC) Zoning District, including the Active Use Area Overlay:**

1. No Lot may be used solely for an Accessory Structure or Accessory Building.
2. Incidental repair includes air conditioning service, carburetor and fuel injection service, electrical service, radiator service, and tune-up, lube, oil change, and smog check, as well as tires, batteries, and accessories installation. Does not allow body repair or painting.
3. Outdoor vehicle display, storage, sales, or service is not permitted.
4. Non-engine and exhaust-related service and repair allowed as incidental use.
5. Maximum occupancy load shall be that maximum occupancy load determined by the City fire marshal.
6. Pedestal Charge Stations that are incidental to a separate primary use, that do not impact on-site or off-site vehicular circulation, and that serve patrons of the primary use on-site are permitted in all Downtown Zoning Districts.
7. Includes on-site outdoor dining area(s).
8. Certain modifications of existing Wireless Facilities may be Permitted with an Administrative Permit in accordance with Section 20.80.1915 of Chapter 20.80.
9. Hotel Supportive Housing may be Permitted only with a Conditional Use Permit pursuant to Part 22 of Chapter 20.80 and only until December 31, 2026.1
10. Outdoor storage of inventory vehicles is permitted only if the parking spaces are fully screened and located at a minimum setback of one hundred fifty (150) feet from the front property lines. The maximum number of parking spaces is limited to fifteen percent (15%) of all parking and paved areas or a maximum outdoor storage area of five thousand (5,000) square feet, whichever is more restrictive. Any other outdoor vehicle display, storage, sales, or service is not permitted. Notwithstanding this provision, one new vehicle may be displayed on a paved area outside of any on-site parking area, provided the display vehicle is not located within the public right-of-way and does not extend past the front of any on-site buildings.
11. Off-sale limited to items produced on-site otherwise a Conditional Use Permit is required.
12. Transitional Housing may be allowed as any residential housing type using the permit process for such housing type.
13. 100% deed-restricted affordable housing is a permitted use for residential housing type, and commercial space requirements shall not apply; subject to conformance with General Plan policies and state law mandates. Refer to Chapter 20.195 for information regarding the ministerial approval process.

**Notes applicable to the Active Use Overlay only:**

a. Automatic Teller Machines must be a secondary use and must be architecturally integrated into the building on which they are placed. Automatic Teller Machines may not be standalone structures. Use may not be an ATM vestibule lobby.

b. Not permitted in corner tenant spaces. Corner tenant spaces are defined as storefronts that extend up to or beyond 30 feet along the street in either direction from the intersection.

c. Second-hand stores not dealing primarily in antiques, artworks, or vintage clothing require a Special Use Permit.

d. Excludes check-cashing services and bail bond services.

e. A residential pedestrian entry portal not exceeding 25 feet in length is permitted in the Ground Floor Active Use Area.

f. Only if dedicated primarily to on-site retail customer copy services, otherwise not Permitted.

PASSED FOR PUBLICATION of title this ___ day of _____, 2024 by the following vote:

AYES:

NOES:

ABSENT:

DISQUALIFIED:

MATT MAHAN
Mayor

ATTEST:

TONI J. TABER, MMC
City Clerk


**DRAFT--Contact the Office of the City Clerk at (408) 535-1260 or CityClerk@sanjoseca.gov for final document.**